IN THE CIRCUIT COURT HELD AT WEIJA ON THURSDAY THE 24TH DAY OF JULY, 2025 BEFORE H/H JOSHUA CALEB ABAIDOO ESQ, THE CIRCUIT COURT JUDGE

CASE NO. C6/05/2024

THE REPUBLIC

VRS

ZAKARIA SHAIBU ALIAS BABA

ACCUSED PERSON PRESENT

C/INSP. MICHAEL BETEH FOR THE PROSECUTION.

BABONYIRE ADAFULA FOR THE ACCUSED PERSON

JUDGMENT

The accused person was charged with one count of the offence of Defilement contrary to section 101 of the Criminal Offences Act 1960, Act 29.

The particulars of offence were as follows;

PARTICULARS OF OFFENCE:

ZAKARIA SHAIBU ALIAS BABA: DRIVER: AGED 68; On the 20th day of August, 2024 at Ablekuma Fanmilk in the Greater Accra Circuit and within the jurisdiction of this Court you did unlawfully carnally know one Wodome Emelda Fafali Akosua, a female child aged 5 years.

The accused person pleaded "not guilty" to the charge made against him.

The prosecution then assumed the burden to prove the charges levelled against the accused person beyond reasonable doubt in accordance with Section 13 (1) of the Evidence Act, 1975 NRCD 323.

Under section 11(2) of Evidence Act, 1975 NRCD 323, in criminal cases the burden of proof is on the prosecution throughout. The prosecution is required to produce sufficient evidence on a fact essential to establish the guilt of the accused, so that on all the evidence a reasonable mind could find the existence of that fact beyond reasonable doubt.

In the case of the accused person except in cases where a statute throws the burden upon him, he is not obliged to prove anything. All that the law requires of him is to raise a reasonable doubt as to his guilt on the fact in issue. Unless and until the Prosecution has discharged the burden of proving the guilt of the accused person to the required degree, the burden does not and will not shift on to the accused person to raise reasonable doubt in the case of the prosecution.

THE BRIEF FACTS

The brief facts of the case are that the on 20/08/24 at about 12:30pm the victim was sent by her grandmother to buy something for her. On her way, the accused called her under the pretence of sending her. When she got there, the accused lured her into his room, asked her to hold his penis and had sex with her on his bed. After that he gave her GHS 5.00. When the victim was coming out of the accused person's room, she was seen by her friend by name Adepa who inquired from her what she had gone to do in the accused person's room. The victim told Adepa what had happened to her. Adepa then took the victim to her parents and informed them about what had happened to the

victim. The parents of Adepa also informed the complainant who is the mother of the victim. The complainant caused the arrest of the accused by the Police.

CASE FOR THE PROSECUTION

PW1 Wodome Emelda Fafali Akosua, aged 5 years who is the survivor in this case told the court that on the day of the incident her grandmother sent her to go and buy Kokonte. On her way to buy the kokonte the accused person whom she calls Baba called her. When she got to him the accused person took her to his room, carried her and put her on his neck. He then took out his penis and made her hold it. The accused put her on his bed, took out his penis and inserted it into her vagina. After that he took a rag and cleaned her vagina and then gave her GHS 5 to go and give it to Ewura Ama. Then the survivor saw Adepa. Adepa asked the survivor what she went to do at Baba's house. She told Adepa everything that had happened and Adepa went to tell her mother.

She told the court that at the time of the incident her mother PW2 had gone to work so she told her mother about it when she returned from work.

During clarification questions at the end of cross examination by the accused person the survivor confirmed that her grandmother sent her to buy kokonte from Ewura Ama who is also called sister Mary.

PW2 Rachel Acheampong is the mother of the survivor PW1. In her witness statement she confirmed that she is the mother of the survivor and confirmed her age. She stated that she was informed about the incident by her younger sister Mary Acheampong at the entrance of her house on her return from work and she (Mary) was also informed about the incident by Adepa's father, who was also informed about it by Adepa. She woke the survivor from sleep and questioned her where upon she confirmed that the

accused had sexual intercourse with her after which he gave her GHS 5 and told her to go home and never tell anybody about it. She stated that the survivor told her about Adepa seeing her after the incident and she telling Adepa about what had happened but she did not tell her grandmother about it when she got home and that she was waiting for her mother to come before she will inform her about it.

PW2 then made a report to the Police and the accused was arrested.

PW3 D/PW/C. Insp. Edith Amewuho in her evidence in chief tendered the following exhibits;

1. Exhibit C:- Photograph of the survivor PW1.
2. " D:- Photographs of the vagina of the survivor showing the open vagina without the hymen.
3. " E:- Photograph of the NHIS card of the survivor showing her date of birth.
4. " F:- Photograph of the pink shorts (underwear) that the victim was wearing on the day of the incident.
5. " F1:- Photograph of the shirt (top) that the victim was wearing on the day of the incident.
6. " G: The investigation caution statement of the accused person.
7. " H: The Charge caution statement of the accused person.
8. " J: Police medical form endorsed with the Medical report.
9. " K: photograph of the frontage of the accused person's apartment.
10. " L: photograph of the 2 in one mattress in the room of the accused.

11. " M: photograph of the frontage of the accused person's apartment

THE CASE FOR THE ACCUSED PERSON

The accused person in his evidence in chief denied ever having had any intercourse with the survivor whether naturally or unnaturally and that on the day in question the survivor never entered his room. He stated that on the day in question the survivor came to him at about 7:30 am claiming that her grandmother had sent her to him for some money for food. He gave the survivor GHS 10 out of the GHS 15 that he had on him to be given to her grandmother. Later that morning he went to one Mary who is an aunt of the survivor and a Mobile Money Vendor to withdraw an amount of GHS100 for which he had to pay her GHS 1, he did not have GHS 1 on him so he promised to pay the GHS 1 later. At about 12:30pm the survivor came to him claiming that her aunt had sent her to collect the GHS 1 for her. The accused did not have GHS 1 at the time so he gave the survivor GHS 5 to be given to her aunt Mary. She went away and that was the end of her interaction with her on that day.

During cross examination the accused person was resolute about his innocence and even challenged the prosecution to produce the person who said she saw the survivor coming out of the accused personas well as the Doctor who examined the survivor to testify before the court and be cross examined. He called one witness DW1 Salifu Issaka.

DW1 Salifu Issaka in his witness statement adopted as his evidence in chief stated that on the day in question he was in front of his house when he saw the survivor approach the accused person and speak to him. At that time the accused was performing ablutions for the afternoon prayer. He did not hear what the survivor said but he saw the accused enter his room, came out and gave something to the survivor and she left without entering the room of the accused. However, during cross examination DW1

was inconsistent with exactly where he was when he saw the survivor approach and speak to the accused person but he maintained that the survivor never entered the room of the accused person.

The Medical Doctor Dr. Rowena Sefakor Torsu testified before the court on the medical report issued by her upon a subpoena summons at the instance of Babonyire Adafula Esq. who was counsel for the accused. She was cross examined by counsel on her familiarity with the police medical form and the difference between the name of the survivor on the Police Medical Form and that used in the facts of the case. The following transpired;

Q. Please take a look at Exhibit J and tell the court from the 2nd line the name of the person you conducted the medical examination on?

A. Emelda Acheampong on the form. According to the mother of the victim this is the name that she mentioned to the police but on the folder that I used there is an added name of Wodome Fafali.

Q. You agree with me that the medical form issued from the Police Station instructs you to examine and report in the case of the person named in the medical form.

A. Yes, my lord.

It is my view relying on the authorities that abound that such minor technicalities should not be dwelt on to deflect the course of justice. In the instant case there is no dispute about the identity of the person who is the subject of the case, the accused has not disputed the identity and so a dispute of this sort is unnecessary.

THE LAW

Section 101 of the Criminal Offences Act 1960, Act 29 states that;

"(1) Defilement is the natural or unnatural carnal knowledge of any child under sixteen years of age.

(2) A person who naturally or unnaturally carnally knows a child under sixteen years of age, whether with or without the consent of the child, commits a criminal offence and is liable on summary conviction to a term of imprisonment of not less than seven years and not more than twenty-five years".

The prosecution is required to prove three things beyond such reasonable doubt that the court will be in a position to safely convict the accused even when he decides not to adduce any evidence in his own defence. These are;

1. That the child/survivor is under 16 years of age,
2. That the child/survivor has been defiled
3. That the accused person is the person who defiled the child/survivor.

The case of the prosecution must fail if it fails to prove any of these ingredients of the offence. (**See Dennis D Adjei, Contemporary Criminal Law in Ghana, pp. 213-214.)**

EVALUATION OF THE EVIDENCE OF THE PROSECUTION

In the instant case the prosecution proved the age of the survivor through the evidence of her mother PW2 who stated her date of birth as 10th March, 2019. She fortified this with the details on Exhibit E i.e. a photograph of the NHI card of the survivor. The accused did not contest or challenge this.

I therefore find that the ingredient of the age of the survivor has been proved by the prosecution beyond reasonable doubt.

As regards whether or not the survivor has been defiled, the medical report Exhibit J stated clearly that the hymen of the survivor is absent. This constitutes proof that the survivor at age 5 years old, has been defiled.

The prosecution's case hangs on only the survivor PW1's evidence to prove that the accused person had sex with her. This is because neither of the evidence led by PW2 and PW3 established or even linked the accused person to the commission of the offence apart from relying on what the survivor told them.

Now PW2 stated in paragraphs 9 and 10 of her witness statement that she examined the victim and saw scratches around her vagina and some fluids inside the vagina. Though the medical report Exhibit J was conducted within 24 to 36 hours after the alleged incident the report did not comment on whether there was evidence of a recent sexual intercourse by way of the presence of semen or any evidence of a recently or newly torn out hymen. It also did not talk about any fluid seen in the vagina. All that it stated was that "*there are scratch marks on the inner thighs and vulva, vaginal introitus inflamed with tenderness on examination. Hymen is absent completely. Impression;- Vulvovaginitis with absent hymen. UTI.*"

The scratches in the thigh suggest that whatever caused the scratches must be a recent event for which reason the scratches had not healed or were still existing. The evidence suggests that the victim who is only 5 years old is acquainted with or knows the accused person very well such that she calls or refers to the accused person as "Baba" which is an accolade or title for father figures in the community. She vividly described the house of the accused person as well as the kind of clothes he was wearing on the day of the incident. She recounted or gave a step-by-step account of what the accused did to her in the room including the accused person cleaning her vagina with a piece of cloth after the sexual intercourse. In the light of how well the victim knows the accused person, it seems unlikely that she will mistake someone else for the accused person

especially when the alleged incident took place in a body-to-body contact and in the daytime. In other words, it is unlikely that the victim cannot correctly identify the accused person if he is the person who called her into his room and defiled her.

However, the court notes a contradiction within the evidence of PW1 in paragraph 12 of her witness statement and her evidence in court regarding the purpose for which the accused gave the survivor GHS 5. While the survivor stated that the accused gave her the GHS 5 and told her not to tell anybody about the incident in the witness statement, she said in court that the GHS 5 was given to her by the accused to be given to Ewura Ama who is also known as Sister Mary. The survivor in her evidence in court, never said that the accused told her not to tell anybody about what had happened.

EVALUATION OF THE EVIDENCE FOR THE ACCUSED PERSON

The law is that where a judge is evaluating the defences available to an accused person based on the evidence, any legitimate defence that is open to the accused, must be considered whether raised or not and however, stupid or weak it might appear to be. (**see the case of Brempong v. The Republic [1995-1996] 1 GLR 321 at 350**). Also in in the case of ***Lutterodt v. Commissioner of Police[1963] 2 GLR 429 at 439*** the three tests for examining the defence put up by the accused person was discussed by the Supreme Court where Ollenu JSC held thus;

"where the determination of a case depends upon facts and the court forms the opinion that a prima facie has been made, the court should proceed to examine the case for the defence in three stages;

1. *Firstly, it should consider whether the explanation of the defence is acceptable, if it is, that provides complete answer, and the court should acquit the defendant;*
2. *If the court should find itself unable to accept, or if it should consider the explanation to be not true, it should then proceed to consider whether the explanation is nevertheless reasonably probable, if it should find it to be, the court should acquit the defendant, and*

3. *Finally, quite apart from the defendant's explanation or the defence taken by itself, the court should consider the defence such as it is together with the whole case, i.e. prosecution and defence together, and be satisfied of the guilt of the defendant beyond reasonable doubt before it should convict, if not it should acquit."*

As regards whether or not it is the accused person and no one else who defiled the survivor, the accused person was not caught in the act. Therefore, the evidence to be relied on is essentially circumstantial. For circumstantial evidence to amount to proof or to support a conviction the standard, per the authorities is that the evidence **"must be inconsistent with the innocence of the accused, and must lead to the irresistible conclusion not only that the crime charged has been committed, but that it was in fact committed by the person or persons charged and by no other person:** in other words the evidence on the whole must exclude the probability that the alleged crime could have been committed by some person or persons other than the person or persons before the court." (See the case of **THE STATE v. BROBBEY AND NIPAH (1962) 2 GLR 101).**

The accused person consistently denied committing the offence including both his investigation caution statement Exhibit G and his charge caution statement Exhibit H. Guided by the authorities cited above the evidence of the person who claims to have seen the survivor coming out of the room of the accused person i.e. the eye witness by name Adepa becomes material. The evidence of the grandmother and the aunt of the survivor who are alleged to have sent the survivor to the accused person are also material. However, none of them was called by the prosecution to testify before the court. In the case of **R v. Ansere (1958) 3 W.A.L.R 385** it was held that a particular piece of evidence becomes material for the determination of the case one way or the other and failure to call the person who can testify to such evidence or to tender in evidence the documents or objects that can resolve the issue is detrimental to the case of the

prosecution. In such a situation the case cannot be said to have been proven beyond reasonable doubt.

In addition to the above, the fact that the survivor confirms that the accused person gave her GHS 5 to be given to a mobile money vendor by name Mary who is the aunt of the survivor, and PW2 confirms that her younger sister's name is Mary Acheampong suggest that PW2's younger sister who is an aunt to the survivor is the person to whom the survivor confirms that the accused asked her to give the GHS 5 to. This makes the story or defence of the accused that the survivor came to him a second time on that day to collect money owed by the accused person to the aunt of the survivor by name Mary, reasonably probably true.

From the entirety of the evidence before the court the following questions need to be answered.

1. In the face of the fact that the medical report does not in any way link the accused person to the scratches found in the thighs of the survivor, the inflammation and tenderness of the vaginal introitus and the Urinary Tract Infection (UTI), can it be said that it is the accused person and no one else who is the cause of these conditions? My answer is "No".
2. Could the Urinary Tract Infection be the cause of the inflammation? In the case of **The State v. Brobbey and Nipah supra** the medical officer who examined the survivor stated that he treated the victim for gonorrhea and "*there were also signs of an inflammation of the internal part of her vagina and she was complaining of lower abdominal pains. That the inflammation would be three to eight or possibly fourteen days old, and in his opinion the white discharge and the inflammation were all the result of sexual intercourse which is the principal cause of gonorrhea in the tropics*."

The medical report in the instant case did not give such detail or linkages apart from treating the survivor for UTI. There is also no evidence that any medical examination was conducted on the accused person which links him with any of the conditions that the medical examination on the survivor revealed.

Even though the common law rule of practice that the evidence of a young person must as a rule of prudence, be well corroborated before being acted upon by the court, is no longer applicable in Ghana pursuant to section 7(3) of the Evidence Act, 1975 NRCD 323 which states that:

> "Unless otherwise provided by this or any other enactment, corroboration of admitted evidence is not necessary to sustain any finding of fact or any verdict."

the court is not precluded from warning itself of the danger of acting on uncorroborated evidence by the provisions of section 7(5) of NRCD 323 which states that;

> "Nothing in this section shall preclude the court or any party from commenting on the danger of acting on uncorroborated evidence or commenting on the weight and credibility of admitted evidence or preclude the tribunal of fact from considering the weight and credibility of admitted evidence."

The retired Justice of the Supreme Court, S A Brobbey in his celebrated book titled THE ESSENTIALS OF THE GHANA LAW OF EVIDENCE (2014) DATRO Publications at page 87 states that section 7(5) of NRCD supra applies in particular when the court is considering evidence of witnesses who testify in sexual offences like rape, defilement of female or indecent assault and statements concerning identification of accused persons in the trial of the latter.

For that reason, this court warns itself of the danger of relying on the evidence of only the survivor without corroboration, in determining whether or not the accused person and no other person defiled the survivor especially in the light of the contradiction between the evidence of the survivor on her witness statement and her oral evidence in

court which goes to the credibility of the witness and her evidence.(See the case of **The State v. Otchere [1963] 2 GLR 463-531**). It will be a gross travesty of justice to take away the liberty of an accused person for 7 or more years when there is no concrete and full proof evidence that he is the one and only person who could have committed the offence.

CONCLUSION

Based on the weaknesses exposed in the evidence of the prosecution through the evaluation of the evidence, this court finds it unsafe to convict the accused person because it is unable to come to the irresistible conclusion that it is the accused person and no one else who defiled the survivor.

I hold that the prosecution has failed to prove the guilt of the accused person beyond reasonable doubt.

DECISION

The accused person is accordingly acquitted and discharged.

(SGD)

H/H JOSHUA C. ABAIDOO

(CIRCUIT COURT JUDGE)